

Track 1 — Chapter Build Pass

MPEP Chapter 1000 · Matters Decided by Various U.S. Patent and Trademark Office Officials

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: Petition vs. Appeal, and Who Decides What

The single most testable idea in this short chapter is the petition-vs-appeal fork: procedural issues go to the Director via petition, substantive patentability rejections go to the PTAB via appeal. Everything else here is largely administrative structure.

Rule 1: Petitions to the Director (§1002)

PLAIN ENGLISH

Certain procedural matters not appropriate for appeal to the PTAB (which handles substantive patentability rejections) are instead resolved through a **petition to the Director** — e.g., petitions challenging restriction requirements, petitions to make special, or petitions relating to abandonment/revival. Petition decisions are generally reviewed by supervisory patent examiners or other designated officials on the Director's behalf, not the PTAB.

EXAMPLE

An applicant disagreeing with a restriction requirement can't appeal that specific procedural issue to the PTAB — the proper vehicle is a petition to the Director (in practice, decided by a supervisory patent examiner or Technology Center director), separate from any substantive claim rejection appeal.

QUIZ

What is the proper mechanism to challenge a restriction requirement's propriety?

- (A) Appeal to the PTAB
- (B) A petition to the Director
- (C) A reissue application
- (D) A certificate of correction

Rule 2: The Office of the Solicitor's Role (§1003)

PLAIN ENGLISH

The **Office of the Solicitor** represents the USPTO Director in litigation (e.g., appeals from PTAB decisions to the Federal Circuit or district court actions) and provides legal advice on certain matters — it's the USPTO's internal legal counsel function, distinct from patent examiners and distinct from the PTAB itself.

EXAMPLE

When an applicant appeals a final PTAB decision to the Federal Circuit, the USPTO's position in that court proceeding is represented by the Office of the Solicitor, not by the examiner or PTAB panel that decided the case.

QUIZ

Who represents the USPTO Director's position when a PTAB decision is appealed to the Federal Circuit?

- (A) The original examiner
 - (B) The Office of the Solicitor
 - (C) The PTAB panel itself
 - (D) The applicant's own attorney
-

Rule 3: Petition vs. Appeal — Choosing the Right Review Path (§1002 cross-ref)

PLAIN ENGLISH

A useful rule of thumb: **substantive rejections of claims** on patentability grounds (§101/§102/§103/§112) are challenged via **appeal** to the PTAB; **procedural** matters (restriction requirements, requirements for information, format objections, revival of abandoned applications) are generally challenged via **petition** to the Director. Misdirecting a challenge to the wrong forum can cause delay or dismissal.

EXAMPLE

An applicant wants to challenge both (1) an examiner's obviousness rejection and (2) a separate requirement to restrict between two inventions. The obviousness rejection goes through PTAB appeal; the restriction requirement goes through a petition to the Director — two different forums for two different types of issues in the same application.

QUIZ

An applicant wants to challenge a formal objection to drawings (not a substantive claim rejection). What is generally the correct review path?

- (A) PTAB appeal
 - (B) Petition to the Director
 - (C) Federal Circuit appeal directly
 - (D) A reissue application
-

Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. Which of these is properly challenged via petition to the Director rather than PTAB appeal?

- (A) A §103 obviousness rejection
- (B) A restriction requirement
- (C) A §102 anticipation rejection
- (D) A §112(b) indefiniteness rejection

2. Who represents the USPTO's position in a Federal Circuit appeal of a PTAB decision?

- (A) The examiner
- (B) The Office of the Solicitor
- (C) The PTAB panel
- (D) The Commissioner for Patents directly, with no counsel

3. Which of these is a substantive matter properly challenged via PTAB appeal rather than petition?

- (A) A drawing objection
- (B) A §101 eligibility rejection
- (C) A restriction requirement
- (D) A petition to make special

Memorize This: Key Tests & Terms

- **Petition to the Director:** procedural matters (restriction requirements, format objections, revival, petitions to make special).
- **PTAB appeal:** substantive patentability rejections (§101/§102/§103/§112).
- **Office of the Solicitor:** USPTO's litigation counsel in Federal Circuit/court proceedings — distinct from examiners and the PTAB.

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: Petitions to the Director (§1002)

What is the proper mechanism to challenge a restriction requirement's propriety?

Answer: B

Restriction requirements are procedural, not substantive patentability rejections, so they're challenged via petition to the Director, not PTAB appeal — a frequently tested distinction between the two review pathways.

Rule 2: The Office of the Solicitor's Role (§1003)

Who represents the USPTO Director's position when a PTAB decision is appealed to the Federal Circuit?

Answer: B

The Office of the Solicitor is the USPTO's litigation counsel, representing the Director's position in court — a distinct role from the examining corps or PTAB.

Rule 3: Petition vs. Appeal — Choosing the Right Review Path (§1002 cross-ref)

An applicant wants to challenge a formal objection to drawings (not a substantive claim rejection). What is generally the correct review path?

Answer: B

Formal/procedural matters like drawing objections go through the petition process, not PTAB appeal, which is reserved for substantive patentability rejections.

Chapter Close-Out Quiz

1. (B)

Restriction requirements are procedural and go through petition to the Director, unlike substantive patentability rejections (§102/§103/§112), which go through PTAB appeal.

2. (B)

The Office of the Solicitor is the USPTO's designated litigation counsel for Federal Circuit and other court proceedings.

3. (B)

A §101 rejection is a substantive patentability determination, properly challenged through PTAB appeal rather than petition.